

Shahvez Khan v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 July 2022 · Writ-C No. 18239 of 2022 · Writ-C No. 18239 of 2022 ·
Writ disposed; clause 6.5 objection to be decided; coercive action stayed.

HEADNOTE

On a challenge to a recovery citation of Rs.2,46,848 and a provisional assessment notice, the High Court, without examining merits, disposed of the writ after the licensee stated that an objection would be decided in a time-bound manner. The consumer was given liberty to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after hearing, with coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Shahvez Khan petitioned the Allahabad High Court to quash a recovery citation dated 14 May 2022 issued for Rs.2,46,848 and to restrain coercive recovery on that citation and on a provisional assessment notice dated 27 August 2020. The respondents included Paschimanchal Vidyut Vitran Nigam Limited. Counsel for the power distribution corporation stated on instructions that the petitioner could file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed demand — objection as alternate remedy

HOLDING

Without expressing any opinion on merits, a writ challenging a recovery citation and provisional assessment is disposed of with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, the objection shall be decided in accordance with law, expeditiously, preferably within four weeks, after reasonable opportunity of hearing, and no coercive action shall be taken for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court disposed of the writ without merits and relegated the consumer to a clause 6.5 objection against the recovery citation. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed recovery of Rs.2,46,848 and the related provisional assessment were left to be examined on a clause 6.5 objection rather than in writ. ¶ 1

6.5-representation-as-appropriate-remedy Liberty was granted to file a clause 6.5 objection before the concerned officer of the distribution licensee, to be decided after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 14.05.2022 AND THE PROVISIONAL ASSESSMENT NOTICE DATED 27.08.2020

The Court expressly declined to express any opinion on merits. ¶ 1